

23LBCV00358 23LBCV00358

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-08-18

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Background Facts

Plaintiff, Jane Doe filed this action against Defendant, Board of Trustees of the California State University ("CSU") on 2/27/23. Prior to serving Defendant with the summons and complaint, Plaintiff filed her operative FAC on 6/26/23. The FAC includes fifteen causes of action, and arises generally out of Defendant's alleged failure to accommodate her disability and retaliation in connection with disability-related complaints. Plaintiff alleges Defendant's misconduct occurred while Plaintiff was both a student and a student employee at CSU.

Motion for Fees

a. §998 Offer Language

The parties settled this action when Plaintiff accepted Defendant's §998 offer on the eve of trial. The §998 offer contained the following relevant language:

If Plaintiff Jane Doe ("Plaintiff") dismisses with prejudice the above entitled action, including all claims and causes of action against CSU, CSU will pay to Plaintiff \$100,001.00 (One Hundred Thousand, One Dollar and Zero Cents), exclusive of reasonable attorneys' fees and costs incurred up to the date of this Offer (March 20, 2026), which CSU will separately pay to Plaintiff's attorneys of record in this matter (Arthur I. Wilner of Leader Berkon Colao & Silverstein LLP; S. Tomiyo Stoner of the Undaunted Law Firm, P.C.).

b. CCP §1021.5

The parties spend the majority of their briefs arguing about whether Plaintiff can recover fees pursuant to CCP §1021.5, the so-called "private attorney general doctrine." Plaintiff, however, also seeks fees per the parties' contract, and Defendant relegates its argument in this regard to the bottom of the 21st page of its opposition, appearing to concede that fees up to the date of the offer must be awarded per contract. The Court declines to rule on the issue of whether fees can or should be granted under §1021.5, because the parties contracted for an award of fees, as they were free to do.

c. Billing Rates

Plaintiff's attorneys bill at the rates of \$500/hour (Tomiyo Stoner) and \$550/hour (Artur I. Willner). Plaintiff's paralegal bills at the rate of \$150/hour. Defendant argues the rates are unsupported and excessive. Defendant argues its own attorneys billed

at the blended rate of \$360/hour, and contends the paralegal rate should be reduced to \$95/hour.

Plaintiff supports the request for fees with (a) the Laffey Matrix, and (b) Plaintiff's attorneys' own declarations concerning their experience and their conclusions that their rates are warranted in light of their experience. Defendant relies on *Heritage Pacific Financial, LLC v. Monroy* (2013) 215 Cal.App.4th 972, 1009 to support its position that the above is insufficient. The Heritage Pacific Court stated (citations omitted):

In determining hourly rates, the court must look to the "prevailing market rates in the relevant community." (citation.) The rates of comparable attorneys in the forum district are usually used. (citation.) In making its calculation, the court should also consider the experience, skill, and reputation of the attorney requesting fees. (citation.) The court may rely on its own knowledge and familiarity with the legal market in setting a reasonable hourly rate. (citation.) "Affidavits of the plaintiffs' attorney and other attorneys regarding prevailing fees in the community, and rate determinations in other cases, particularly those setting a rate for the plaintiffs' attorney, are satisfactory evidence of the prevailing market rate." (citation.)

While the Heritage Pacific Court held that such evidence is "satisfactory," it did not hold that such evidence is "necessary," as Defendant argues. The Court finds the declarations are sufficient to set forth the information necessary to determine an appropriate hourly rate, as they include detailed descriptions of education, experience, licensure, and expertise in the subject area. As noted above, the Court is permitted to use its own expertise in determining whether an hourly rate is reasonable or not. The Court finds the rate of \$550/hour for an attorney with more than four decades of experience and with a sub-specialization in bringing discrimination actions against universities is reasonable. The Court finds the rate of \$500/hour for an attorney with fifteen years of experience who also specializes in disability litigation is reasonable. The Court also finds the rate of \$150/hour for a paralegal is reasonable.

d. Hours Billed

Exhibit A to the Stoner Declaration is the firm's billing records. Defendant correctly notes that the records are so vague as to render them impossible to analyze. The entries are all for things like "document review," "case development," "research and strategy," and "client communications." Defendant cites *Christian Research Institute v. Alnor* (2008) 165 Cal.App.4th 1315, 1328 in this regard. The Alnor Court held (citations omitted):

Alnor challenges the number of compensable hours the trial court selected for its lodestar calculation. Quoting federal cases, Alnor complains the trial court made "no attempt to calibrate the number chose[n] to demonstrable inefficiency in carrying out particular tasks." (citation.) And, paying lip service to the trial court's discretion to determine a reasonable fee, Alnor concedes merely that the court "does have discretion to reduce individual billing entries that are improper."

Alnor's position flies in the face of California law. As our Supreme Court has observed: "If ... the Court were required to award a reasonable fee when an outrageously unreasonable one has been asked for, claimants would be encouraged to make unreasonable demands, knowing that the only unfavorable consequence of such misconduct would be reduction of their fee to what they should have asked in the first place. To discourage such greed, a severer reaction is needful...." (citation.) Similarly, counsel may not submit a plethora of noncompensable, vague, blockbilled attorney time entries and expect particularized, individual deletions as the only consequence. The trial court could reasonably conclude counsel made no effort to prune the fee request to comply with the law. Counsel erred grievously by attempting to transfer that responsibility onto the trial court. The trial court could reasonably conclude counsels disregard for the law undercut the credibility of their fee request and, as officers of the court, warranted a severe reaction.

The Court herein agrees with Defendant. The block billing in the time records is so egregious that the Court cannot meaningfully determine what hours were reasonably billed and what hours were not reasonable billed. Defendant notes that a total of 1508.08 hours were billed, but no depositions were taken, no summary judgment motion was filed, no experts were designated, and only two rounds of written discovery were exchanged. Defendant notes that Plaintiff's attorneys billed 350 hours more than Defense Counsel did, despite the fact that Defendant substituted new attorneys into the action on three occasions.

The Court will reduce the hours billed by 350 and will do so at the average rate of \$525/hour, reducing the fees by \$183,750.

e. Fees Incurred After Offer

Defendant correctly notes that \$30,700 of the fees billed were billed after the offer was made. The offer expressly contemplated an award of fees up to the date of the offer. The Court will therefore also reduce the fees by \$30,700.

f. Multiplier

The unadorned lodestar reflects the basic fee for comparable legal services in the community. It may be adjusted based on various factors, including:

- the novelty and difficulty of the questions involved;
- the skill displayed in presenting them;
- the extent to which the nature of the litigation precluded other employment by the attorneys;
- the contingent nature of the fee award (except as mitigated by the client's agreement to pay some portion of the fee regardless of the outcome);
- the success achieved (including all positive results from litigation—i.e., changes in company policy, dollar value of settlement benefits); and
- in class actions, the rate of acceptance of the benefit offered to class members (measures one aspect of overall success—i.e., the degree to which the settlement benefits were of interest to class members). *Serrano v. Priest* (“Serrano III”) (1977) 20 Cal.3d 25, 49.

The purpose of a fee enhancement is “primarily to compensate the attorney for the prevailing party at a rate reflecting the risk of nonpayment in contingency cases as a class.” *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1138. The aim is to compensate attorneys for their services at fair market value as an inducement to accept such matters. (“Fair market value” typically includes a premium for the risk of nonpayment or delay in payment of attorney fees.) *Id.* at 1138. The party seeking the fee enhancement bears the burden of proof. *Id.*

The court must not consider extraordinary skill and the other *Serrano* factors to the extent these are already included within the lodestar. *Id.* at 1139. In particular, extraordinary skill and the difficulty of the question involved are usually already encompassed in the lodestar. “A trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable.” *Id.*

Additionally, pursuant to *Alnor*, *supra*, at 1328-1329, the Court has the discretion to deny a lodestar multiplier when Counsel engages in block billing.

The Court herein finds a lodestar is not appropriate, both because the attorney rates awarded are on the high end of reasonable, and also because the block billing renders full analysis of the reasonableness of the fees impossible.

g. Amount of Fees

Plaintiff seeks to recover \$744,033 in fees before the requested multiplier. The Court is reducing those fees by \$183,750 and \$30,700, leaving \$529,583 as the final fee award.

h. Costs

Plaintiff also seeks to recover \$1603.86 in costs in connection with this motion. Defendant does not mention or address the request for costs. However, costs are fixed by filing a memorandum of costs, not a noticed motion. CCP §§1034(a), 1034.5, CRC 3.1700, et seq. The motion to recover costs is denied; the ruling is without prejudice to Plaintiff's right to recover these costs through a proper procedural mechanism.

OSC re: Dismissal (Settlement)

The parties are reminded that there is an OSC re: Dismissal on calendar concurrently with the hearing on the motion for fees. The Court asks Counsel to make arrangements to appear remotely at the OSC and hearing on the motion.

Dated this 18th day of August, 2026